



Maritime &
Coastguard
Agency

Guidance

MGN 679 -Annex 1 - Offences under the Merchant Shipping (Nuclear Ships) Regulations 2022

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Offence	Regulation	Committed by	Penalty
Requirement for safety assessment	7(1)	Owner and master of a nuclear ship in respect of each case of non-compliance	(a) On summary conviction– (i) in England and Wales by a fine; or (ii) in Scotland or Northern Ireland by a fine not exceeding the statutory maximum; or (b) On conviction on indictment by imprisonment for a term not exceeding two years, or a fine, or both.
			The custodial sentence of two years is the maximum custodial penalty available under the power in section 85(7)(b) of the Merchant Shipping Act 1995 and may be combined with a fine. These are the maximum penalties.
Design and construction of nuclear ships	8	Owner and master of a nuclear ship in respect of each case of non-compliance	As above

Offence	Regulation	Committed by	Penalty
Suitability of reactor installation for service on board a ship	9	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Approval of reactor installation	10	Owner and master	As above
Radiation safety	11	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
General operating requirements for nuclear ships	12 (in so far as this relates to a contravention of paragraph 7.1.1 or 7.1.4 in Chapter 8 of the Nuclear Code)	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
General operating requirements for nuclear ships	12 (in so far as this relates to a contravention of paragraph 7.1.3 in Chapter 7 of the Nuclear Code)	Company (usually the operator, which may be the owner or manager)	As above
Safety assessment – operational requirements	13(1)(a) or (b), (2)(a) or (b), or (5)	Owner and master of a nuclear ship in respect of each case of	As above

Offence	Regulation	Committed by	Penalty
		non-compliance	
Operating manual	14(1), (3)(a) or (b), (4) or (5)(a) or (b)	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Additional operating documentation	15(1), (3)(a) or (b), (4), (5) or (6)	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Emergency operation procedures	16	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Maintenance and repair	17	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Manning and training	18(1)	Owner and master of a nuclear ship in respect of each case of non-compliance	As above

Offence	Regulation	Committed by	Penalty
Surveys of United Kingdom nuclear ships	20(1)(a), (b) or (c), (2), (3), (4), (6), (7), (8), (9) or (11)(a), (b), (c) or (d)	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Requirement to hold on board a nuclear ship safety certificate	21(3)	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Responsibilities of owner and master	23(1)	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Prohibition on proceeding to sea or on a voyage without the appropriate certificate	27	Owner and master of a nuclear ship in respect of each case of non-compliance	As above
Quality assurance programme	28	Owner and master of a nuclear ship in respect of each case of non-compliance.	As above
Decommissioning of nuclear ships	29	The master in respect of each case of	As above

Offence	Regulation	Committed by	Penalty
		non-compliance	
Loss of a nuclear ship	30(a) or (b)	Master	As above
Failure to have safety assessment ready for examination	13(2)(c)	Owner and master of a nuclear ship	on summary conviction— in England and Wales by a fine; or in Scotland or Northern Ireland by a fine not exceeding the statutory maximum; or on conviction on indictment by imprisonment for a term not exceeding six months, or a fine, or both.
failure to have operating manual ready for examination	14(5)(c)	Owner and master of a nuclear ship	As above
Failure to have additional operating documentation ready for examination	15(3)(c)	Owner and master of a nuclear ship	As above
Failure to have results of surveys and tests readily available for examination	20(11)(e)	Owner and master of a nuclear ship	As above
Failure to have nuclear ship safety	21(4)	Owner and master of a	As above

Offence	Regulation	Committed by	Penalty
certificate ready for examination		nuclear ship	
Falsification of certificate etc	25(3)	The person in question.	As above
Providing training without approval etc.	18(13)(a), (b), (c) or (d)	Providing training without approval etc.	On summary conviction— in England and Wales by a fine; or in Scotland or Northern Ireland by a fine not exceeding the statutory maximum; or on conviction on indictment by a fine.



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